

CITY OF CHEYENNE

CITY COUNCIL AGENDA ITEM SHEET

DATE OF PROPOSED COUNCIL ACTION: July 8, 2013

TYPE OF DOCUMENT: () ORDINANCE () RESOLUTION () LEASES/CONTRACTS
() CONSIDERATION OF BIDS (X) OTHER - Public Hearing

SPONSOR (ORDINANCE OR RESOLUTION):

LEGAL TITLE (CONTRACT NO., ETC.):

EXACT WORDING FOR AGENDA: Public Hearing for a transfer of ownership and transfer of location for a retail liquor license application filed with the City Clerk's Office for Safeway Stores 46, Inc. d/b/a Safeway Store #2975, 305 Cole Shopping Center, Cheyenne, Wyoming. (License currently held by Lambousis Revocable Trust, 112 W. 17th Street, Cheyenne, Wyoming).

1% SALES TAX/GRANT/OTHER FUNDING:

CONTACT PERSON/PHONE: **Kristy Anderson #6346** KEY DEPT: **City Clerk**

OTHER AFFECTED CITY DEPARTMENTS: Environmental Health, Fire, Police and Building

OTHER GOVERNMENT AGENCIES AFFECTED: State Liquor Division

FINANCIAL IMPACT: Continuance of annual license revenue

CONTRACT PARTIES OFFICIAL TITLE:

CONTRACT TERMS:

STARTING DATE:

	YES	NO	N/A
Is funding budgeted?	()	()	(x)
Were Bids called for?	()	()	(x)
Affected parties notified of Council procedures/dates?	(x)	()	()
Has bond or other security been arranged?	()	()	(x)
Has insurance been arranged?	()	()	(x)
Have legal descriptions been received and checked?	(x)	()	()
Proposed conditions which affect City?	()	()	(x)
Agenda item reviewed and initialed by City Attorney?	(x)	()	()
Agenda item reviewed/approved by Department Head?	(x)	()	()

SUBMITTED BY: **Kristy Anderson** TITLE: **Deputy City Clerk** DATE SUBMITTED: July 3, 2013

UPON PASSAGE OF THIS AGENDA ITEM, COPIES SHOULD BE SENT TO: Notify The State Liquor Division and the Police Department.

FOR NEW LICENSES AND TRANSFER
LICENSE AND/OR PERMIT APPLICATION
 FOR LIQUOR, COUNTY MALT BEVERAGE, LIMITED, WINERY OR MICROBREWERY

<u>To be completed by the City, Town or County Clerk:</u>			Formerly Held by: <u>Lambousis Revocable Trust</u>
Date Filed: <u>June 15 1 2013 2:30pm</u>	Applicant: <u>Safeway Stores 46, Inc.</u>		
Basic Fee: \$ _____	Annual Fee \$ _____	Prorated Fee \$ _____	Trade Name (dba): <u>Safeway Store #2975</u>
Add'l Dispensing Room Fee: \$ _____	\$ _____	\$ _____	Premise Address: <u>305 Cole Shopping Center</u> Number & Street
Transfer Fee: \$ <u>100.00</u>	\$ <u>100.00</u>	\$ _____	<u>Cheyenne</u> <u>WY</u> <u>82001</u> <u>Laramie</u> City State Zip County
Total License Fee Collected \$ <u>100.00</u>	\$ _____	\$ _____	Mailing Address: <u>PO Box 328</u> Number & Street or P.O. Box
Publishing Fee Collect: \$ <u>100.00</u>	\$ _____	\$ _____	<u>Cheyenne</u> <u>WY</u> <u>82003-0328</u> City State Zip
Required Attachments Received: Yes ☒	Business Telephone Number: <u>(307) 632 6421</u>		
Advertising Dates(4): <u>June 10, 17, 24, July 1, 2013</u>	Fax Number: <u>307 632 7216</u>		
Hearing Date: <u>July 1 8 1 2013</u>	E-Mail Address: <u>jsundahl@spkm.org</u>		
Local Licensing Number: <u>20</u>	For the license term: <u>upon issuance</u> Month Day Year		
Through: <u>March 31 12014</u> Month Day Year	A copy must be immediately forwarded to: State of Wyoming Liquor Division 1520 E 5 th Street Cheyenne WY 82002-0110		

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

FILING FOR	TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)	To Assist the Liquor Division with scheduling inspections:
☐ NEW ☒ TRANSFER LOCATION ☒ TRANSFER OWNERSHIP	☒ RETAIL LIQUOR LICENSE ☐ on-premise only ☒ off-premise only ☐ combination on/off premise ☐ RESTAURANT LIQUOR LICENSE ☐ RESORT LIQUOR LICENSE ☐ COUNTY RETAIL or SPECIAL MALT BEVERAGE PERMIT ☐ VETERANS CLUB ☐ FRATERNAL CLUB ☐ GOLF CLUB ☐ SOCIAL CLUB ☐ MICROBREWERY ☐ WINERY ☐ BAR AND GRILL ☐ LOCATED WITHIN 5 MILES OF CITY (County License only)	DO YOU OPERATE? ☒ FULL TIME (e.g. Jan through Dec) ☐ SEASONAL/PART-TIME (specify months of operation) from _____ to _____ DAYS OF WEEK (e.g. Mon through Sat) Monday - Sunday HOURS OF OPERATION (e.g. 10a - 2a) M-Sat. 6am-midnight Sunday 10am-10pm
FILING IN (CHOOSE ONLY ONE) ☒ CITY OF <u>Cheyenne</u> ☐ COUNTY OF _____		
FILING AS (CHOOSE ONLY ONE) ☐ INDIVIDUAL ☐ LLC ☐ PARTNERSHIP ☐ LLP ☒ CORPORATION ☐ LTD PARTNERSHIP ☐ ASSOCIATION ☐ ORGANIZATION		

1. Location of License:

(a) Give a description of the dispensing room and state where it is located in the building (e.g. 10x12 room in SE corner of 1st floor of building). If the building is not in existence, provide the location and an architect's drawing or suitable plans of the room and premises to be licensed: If Winery or Microbrewery, also list manufacturing facility. W.S. 12-4-102(a)(i): (Please submit a drawing of dispensing room)
Approximately 2,000 sq. ft. room in the northwest corner of the building

(b) Do you have an additional dispensing room? ☐ YES ☒ NO If yes, provide description and location:

(c) Provide the legal description and the zoning of the site where the applicant will conduct business:
Block 5 plus a portion of 19th Street vacated, Mountview Park ZONED: PUD

2. Do you W.S. 12-4-103 (a) (iii):

(1) OWN the building in which sales room is located?

☒ YES (own)

(2) LEASE the building in which sales room is located?

☐ YES (lease)

(A) DATE lease expires _____ located on page _____ paragraph _____ of lease document.

(B) Provision for SALE of alcoholic or malt beverages located on page _____ paragraph _____ of lease.

NOTE: Attach a true copy of the lease to application. Lease MUST contain provision for SALE OF ALCOHOLIC or MALT BEVERAGES and be valid THROUGH the TERM OF THE LICENSE W.S. 12-4-103(a)(iii).

3. Have you already assigned, leased, transferred or do you intend to assign, lease, transfer, contract or in any other manner agree with any person or firm other than yourself as licensee to operate and assert control or partial control of the license and the licensed room to carry on the licensed liquor business? ☐ YES ☒ NO

4. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403
- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered YES to any of the above, explain fully and submit any documents in connection therewith:
-
5. Does applicant have any interest or intent to acquire an interest in any other retail liquor license to be issued by this licensing authority? W.S. 12-4-103(b) ☐ YES ☒ NO
If "YES", explain: _____
-
6. Is applicant a mayor, member of a city or town council, or member of the board of county commissioners within the jurisdiction of this licensing authority? W.S. 12-4-103(a)(i) ☐ YES ☒ NO
-
7. Is applicant employed by the State, City or Town, or County as a law enforcement officer, or hold office as a law enforcement officer through election? W.S. 12-4-103(a)(ii) ☐ YES ☒ NO

RESTAURANT OR BAR AND GRILL LICENSE: Complete questions 8(a) and 8(b):

8. (a) Have you submitted a valid food service permit upon application?
W.S. 12-4-407(a) W.S. 12-4-413(a) ☐ YES ☐ NO
- (b) Was your dispensing room for alcoholic and/or malt beverages in existence and open for consumption purposes prior to February 1, 1979? W.S. 12-4-410(b) ☐ YES ☐ NO ☐ N/A

RESORT LICENSE: Complete questions 9(a) through 9(c):

9. (a) Is the actual valuation of the resort complex at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
- (b) Does the resort complex include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Does the resort complex include motel or hotel accommodations with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO

MICROBREWERY AND/OR WINERY LICENSE: Complete questions 10 through 11:

10. Is premise to be co-existent with a retail, restaurant, resort or bar and grill liquor license?
W.S. 12-4-412(b)(iii) ☐ YES ☐ NO
- If "YES", please specify type: ☐ Microbrewery ☐ Winery ☐ Retail
☐ Restaurant ☐ Resort ☐ Bar & Grill:
11. (a) Do you self distribute your products? ☐ YES ☐ NO
- (b) Do you distribute your products through an existing malt beverage wholesaler? ☐ YES ☐ NO

ORGANIZATION AND/OR CLUB LICENSE: Complete questions 12 through 15 as applicable:

12. FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

- (a) The name and address of the grand lodge or national organization is: _____
- (b) Does lodge or fraternal organization hold a charter from a national organization or national grand lodge? ☐ YES ☐ NO
- (c) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (d) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

13. VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

- (a) The name and address of the National Veterans organization is: _____
- (b) Has the Veteran's organization been chartered by the Congress of the United States for patriotic, fraternal or benevolent purposes? ☐ YES ☐ NO
- (c) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO
-

14. SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with the local licensing authority and the Wyoming Liquor Division? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License?
(THE PETITION MUST BE ATTACHED TO APPLICATION) ☐ YES ☐ NO
- (i) Have you filed with the licensing authority and the Wyoming Liquor Division a detailed statement of your activities during the preceding year which were undertaken or furthered in pursuit of the objectives of the club, along with an itemized statement expended for such activities? ☐ YES ☐ NO

15. GOLF CLUBS W.S. 12-1-101(a)(iii)(D):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO

- 16. (a) If applicant is an Individual or Partnership:** State the name, date of birth and residence of each applicant or partner, if the application is made by more than one individual or by a partnership.
If the application is for a Club: State the name, date of birth and residence of each officer.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

- (b) If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership:** State the name, date of birth and residence of each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	No. of Years in Corp or LLC	% of Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
						YES ☐ NO ☐	YES ☐ NO ☐
Linda S. MacDonald	10/1/1957	4033 Norton Avenue Oakland, CA 94602	(510) 482-4292	25	0	YES ☐ NO ☒	YES ☐ NO ☒
Marilyn K. Beardsley	6/10/1963	3038 Wisconsin Ave. Oakland, CA 94602	(510) 482-3838	16	0	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
100% of the stock of		the corporation is owned by Safeway Inc.				YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

OATH OF VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF WYOMING)

SS.

COUNTY OF _____)

See attached certificate

Before Me, _____, (specify)
(Printed name of Notary or other officer authorized to administer oaths)

a Notary Public, Officer authorized to administer oaths in and for

_____, County, State of Wyoming, personally appeared

(Insert Names)

name he/she being first duly sworn

by me upon his oath, says that the facts alleged in the foregoing instrument are true.

(Seal)

1. Linda P. MacDonald2. Walter K. Bunderling

3. _____

4. _____

My Commission expires: _____

Witness my hand and official seal:

LSM

(Notary Public or other officer authorized to administer oaths)

Title _____

Dated: _____

REQUIRED ATTACHMENTS:

- (a) Attach any lease agreements W.S. 12-4-103 (a) (iii).
- (b) If the building is not in existence, an architect's drawing or suitable plans of the room and the premises to be licensed must be attached W.S. 12-4-102 (a) (i).
- (c) A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102 (a) (v).
- (d) Restaurant or Bar & Grill Liquor License applicants must include a copy of the CURRENT food service permit W.S. 12-4-407 (a) or 12-4-413 (a).
- (e) Include a drawing of the dispensing room W.S. 12-5-201 (a).
- (f) Check or bank draft as payment for the application and publishing the notice of application (Direct billing is permissible for publication fees) W.S. 12-4-101-4 (a).
- (g) If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601 (b).

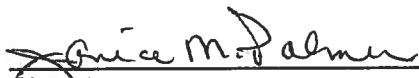
ADVERTISING REQUIREMENTS W.S. 12-4-104(a):

When an application for a license, permit, renewal or any transfer of location or ownership thereof has been filed with a licensing authority, the clerk shall promptly prepare a notice of application, place the notice conspicuously upon the premises shown by the application as the proposed place of sale and public the notice in a newspaper of local circulation once a week for four (4) consecutive weeks. The notice shall state that a named applicant has applied for a license, permit, renewal or transfer thereof, and that protests against the issuance, renewal, or transfer of the license or permit will be heard at a designated meeting of the licensing authority.

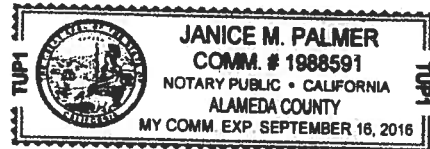
FOR LIQUOR DIVISION USE ONLY		
Reviewer	Initials	Date
Agent:		
Chief:		
Acct.:		

STATE OF CALIFORNIA)
) ss.
COUNTY OF ALAMEDA)

Subscribed and sworn to (or affirmed) before me on this 15th day of May, 2013 by
Linda S. MacDonald and Marilyn K. Beardsley, proved to me on the basis of satisfactory
evidence to be the persons who appeared before me.



Signature



(Seal)

Sundahl, Powers, Kapp & Martin, L.L.C.

ATTORNEYS AT LAW
1725 CAREY AVENUE
P.O. BOX 328
Cheyenne, Wyoming 82003-0328
www.spkm.org

JOHN A. SUNDAHL, P.C.
GEORGE E. POWERS, JR., P.C.
PAUL KAPP, P.C.
RAYMOND W. MARTIN, P.C.
KAY LYNN BESTOL, P.C.

JANE M. FRANCE
JASON WILLIAMS*
*Also admitted in Idaho

TELEPHONE
(307) 632-6421

TELECOPIER
(307) 632-7216

E-MAIL
atty@spkm.org

Writer's Direct E-mail: jsundahl@spkm.org

May 22, 2013

Mayor Richard L. Kaysen and
Cheyenne City Council
2101 O'Neil
Cheyenne, WY 82001

Re: Safeway Stores 46, Inc. Liquor License Application

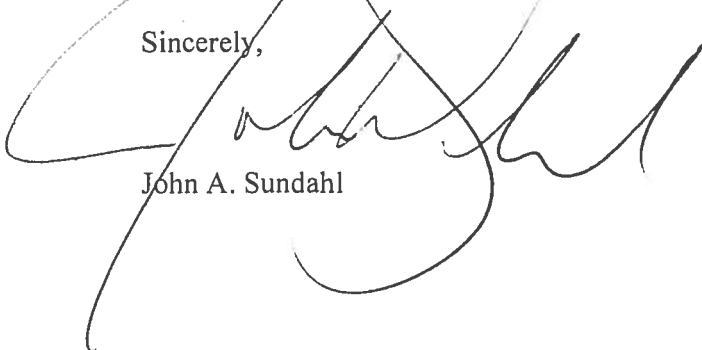
Dear Mayor Kaysen and Members of the Cheyenne City Council:

I am pleased to represent Safeway Stores 46, Inc. in connection with its application for transfer of ownership application of liquor license #20 to Safeway Stores 46, Inc. and to transfer the remodeled building at the Cole Shopping Center. The size of the dispensing room is approximately 2,000 square feet, with an outside entrance only.

We are pleased to report that the Cheyenne Board of Adjustment has unanimously approved the Conditional Use to allow a liquor store at the location and has found that all criteria of Article 2, Section 2.2.4.d of the Cheyenne Unified Development Code have been met. Please see the attached letter. The Planning Office and city attorney have determined that a second application before the Board of Adjustment is not required because the previous approval was sufficient.

Safeway has been a proud partner of Cheyenne for sixty years and has provided substantial jobs and taxes to this community. The Cole Shopping Center has a number of vacancies in its retail space and is in need of an additional business. Safeway believes that the addition of a liquor store to the shopping center will prove to be a benefit and convenience for its shoppers, and will help to invigorate businesses at the Cole Shopping Center. We respectfully urge you to approve the requested transfer. I am happy to answer any questions you might have concerning the application.

Sincerely,


John A. Sundahl

JAS/gf
enclosures

May 24, 2013

The honorable Mayor of
the city of Cheyenne and
members of the City Council
Room 115
2101 O'Neil Avenue
Cheyenne, WY. 82001

Dear Mr. Mayor and members of the
governing body of the city of Cheyenne:

My name is John Lambousis, I reside on 1841 East
18th St. Cheyenne, WY. 82001. I own my own house since
1981. I have lived in Cheyenne since 1972 when I
bought the Mayflower Restaurant and lounge and ran
it until 1980. It was on 112 W. 17th St. In 1982 I
opened the Cheyenne Club on 1617 Capitol ave. and
ran it until 2003 where I leased it out. In 1999 I
formed the Lambousis Revocable Trust, a financially
solid entity, without any liens. This Trust owns the
city of Cheyenne retail liquor license #20. I would
like to ask you to approve the transfer of this license to
Safeway Stores 46, Inc.
469 Cole Center
Cheyenne, WY. 82001

Thank you for your consideration

Sincerely
John Lambousis.

STATE OF WYOMING
Office of the Secretary of State

I, MAX MAXFIELD, SECRETARY OF STATE of the STATE OF WYOMING, do hereby certify that according to the records of this office,

Safeway Stores 46, Inc.

is a

Profit Corporation

formed or qualified under the laws of Delaware did on **November 4, 1986**, comply with all applicable requirements of this office. Its period of duration is Perpetual. This entity has been assigned entity identification number **1986-000238591**.

This entity is in existence and in good standing in this office and has filed all annual reports and paid all annual license taxes to date, or is not yet required to file such annual reports; and has not filed an Application for Certificate of Withdrawal.

I have affixed hereto the Great Seal of the State of Wyoming and duly generated, executed, authenticated, issued, delivered and communicated this official certificate at Cheyenne, Wyoming on this 4th day of June, 2012 at 11:53 AM. This certificate is assigned 012161721.




Secretary of State

Notice: A certificate issued electronically from the Wyoming Secretary of State's web site is immediately valid and effective. The validity of a certificate may be established by viewing the Certificate Confirmation screen of the Secretary of State's website <http://wyobiz.wy.gov> and following the instructions displayed under Validate Certificate.



A COMMUNITY OF CHOICE

BUILDING & DEVELOPMENT OFFICE
2101 O'Neil Avenue, Suite 202, Cheyenne, WY 82001
(Phone) 307-637-6352 • (Fax) 307-637-6366

August 10, 2012

John Sundahl
Sundahl, Powers, Kapp, & Martin, LLC
1725 Carey Avenue
Cheyenne, WY 82001

RECEIVED
AUG 14 2012

RE: Conditional Use Request – Board Approval-12-00004: A Conditional Use Approval to allow a retail liquor store pursuant to Article 5.1.4. Table 5-1 of the Cheyenne Unified Development Code on Block 5, Mountview Park, plus a portion of vacated 19th Street, Cheyenne, WY (located at 305 Cole Shopping Center) in a PUD, Ordinance #3938 – Planned Unit Development.

At its special meeting on Tuesday, August 7, 2012, the Cheyenne Board of Adjustment voted to *approve* the above-noted Conditional Use request by a unanimous vote of 7 in favor and 0 against in accordance with all of the criteria pursuant to Article 2, Section 2.2.4.d of the Cheyenne Unified Development Code having been met.

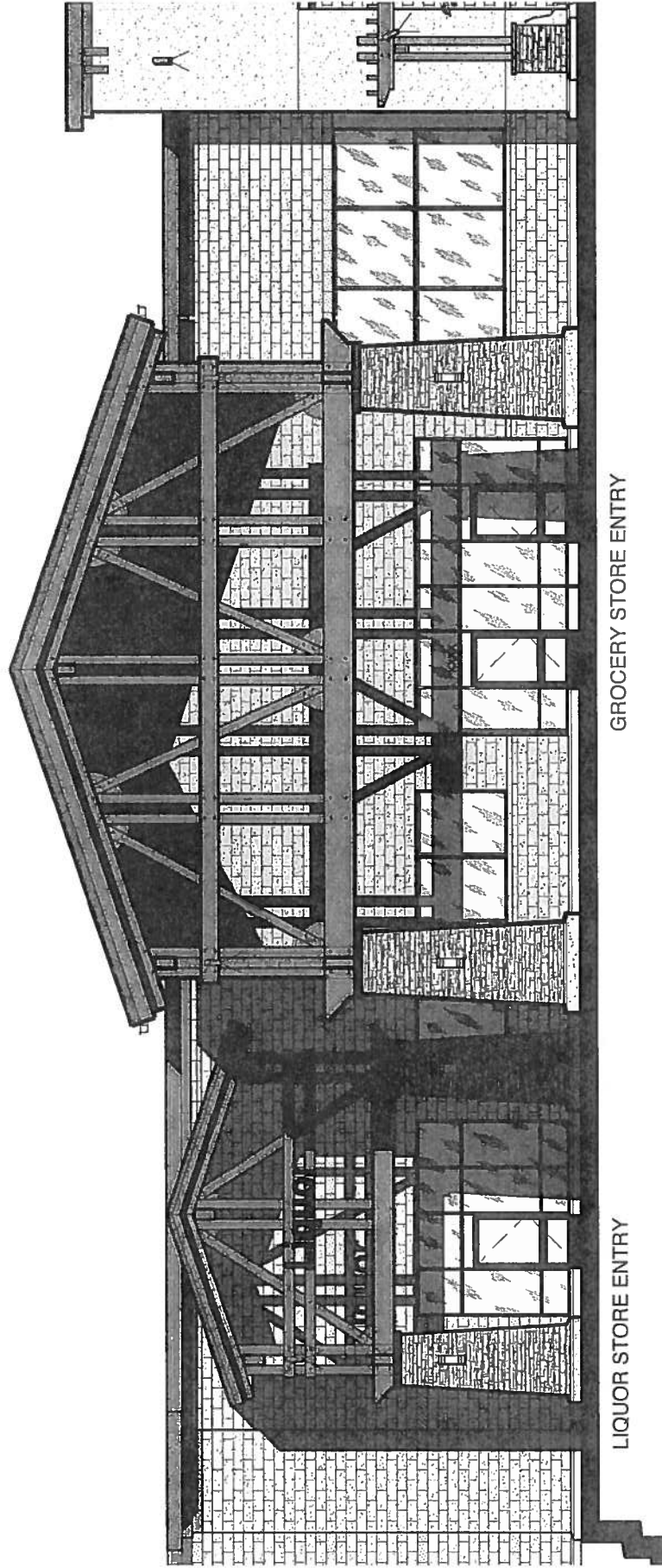
We will mail you a copy of the approval document (Facts and Findings) regarding your request once the original document has been finalized.

Please contact the Development Office if you have any questions or need additional information.

Regards,

Todd Kennedy,
Planner II

cc: File (MTV-C)
Owner



GROCERY STORE ENTRY

LIQUOR STORE ENTRY

PROPOSED WEST ELEVATION (FRONT)



Project Number: #11213

SAFEWAY

STORE #2975 - Cheyenne, Wyoming



SAFEWAY

DENVER DIVISION CONSTRUCTION AND DESIGN 6900 S YOSEMITE CENTENNIAL, CO 80112

STORE #2975

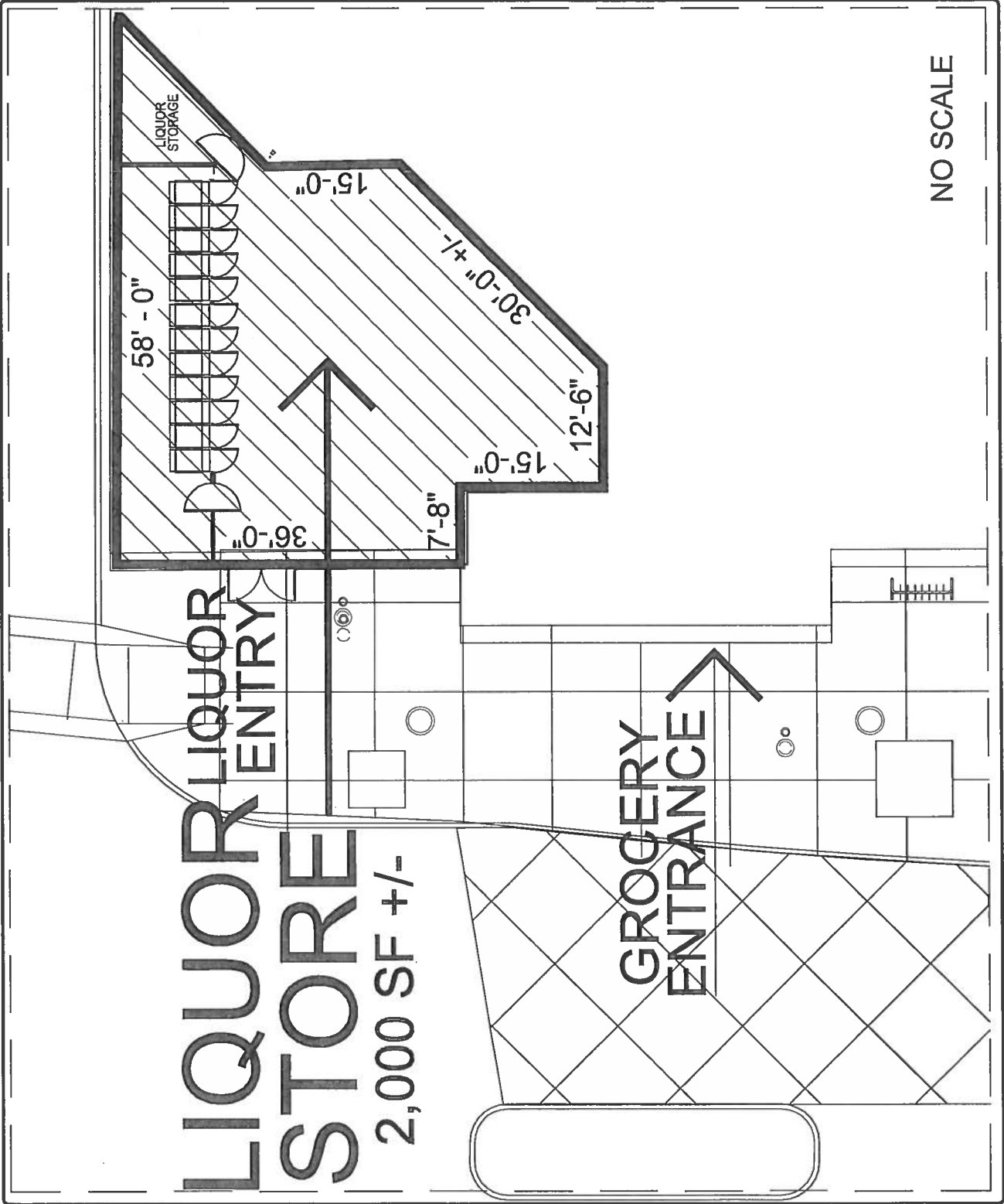
CHEYENNE, WYOMING

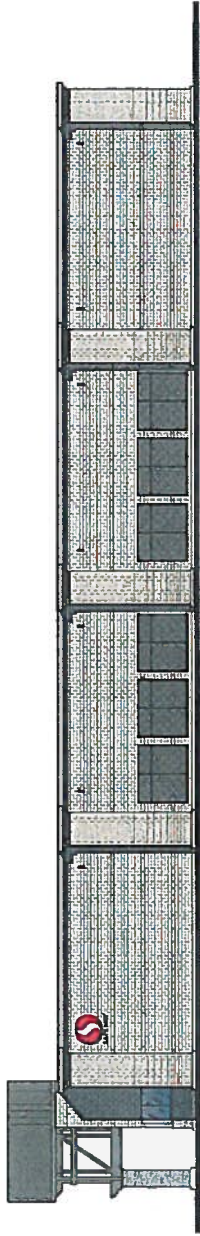
SHEET TITLE

PROPOSED LIQUOR

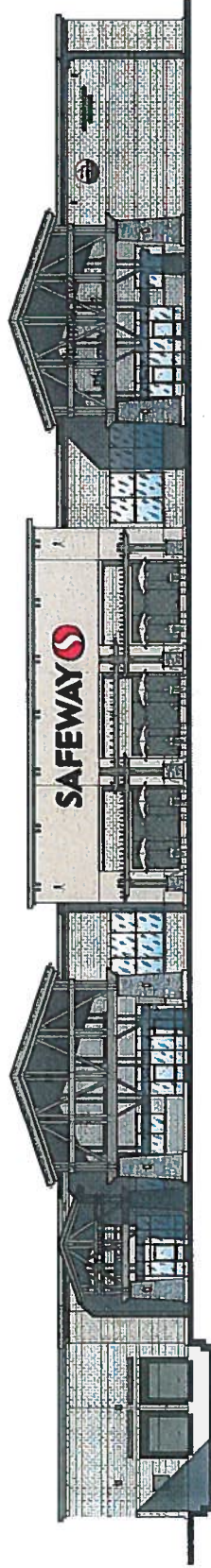
STORE

ISSUE	104PRL13
PROJECT NO:	05-2975-01
DWG FILE:	2975LIQUOR
DRAWN BY:	LMC
CHECKED BY:	JTF

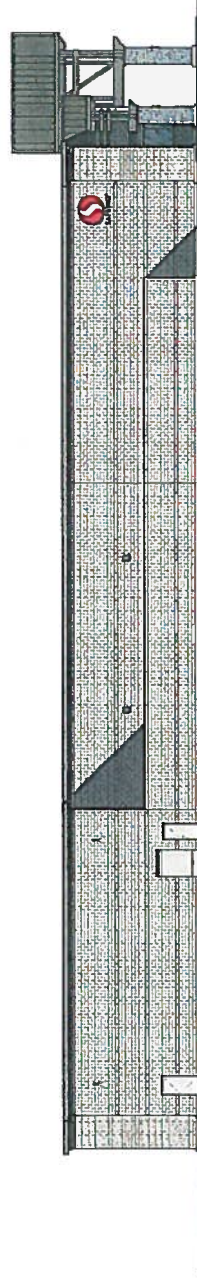




PROPOSED SOUTH ELEVATION (RIGHT SIDE)



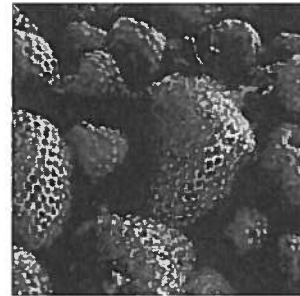
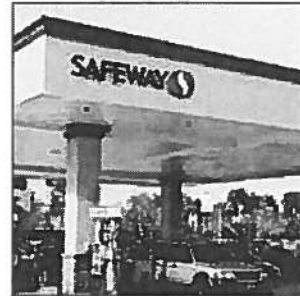
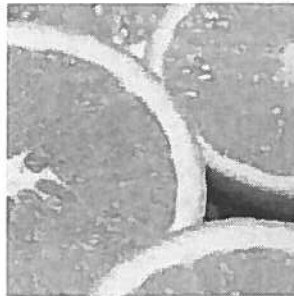
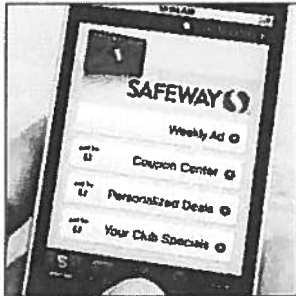
PROPOSED WEST ELEVATION (FRONT)



PROPOSED NORTH ELEVATION (LEFT SIDE)



PROPOSED EAST ELEVATION (REAR)



SAFEWAY INC. AND SUBSIDIARIES
Consolidated Statements of Income
(In millions, except per-share amounts)

	52 Weeks 2012	52 Weeks 2011	52 Weeks 2010
Sales and other revenue	\$ 44,206.5	\$ 43,630.2	\$ 41,050.0
Cost of goods sold	(32,486.5)	(31,836.5)	(29,442.5)
Gross profit	11,720.0	11,793.7	11,607.5
Operating and administrative expense	(10,615.9)	(10,659.1)	(10,448.1)
Operating profit	1,104.1	1,134.6	1,159.4
Interest expense	(304.0)	(272.2)	(298.5)
Other income, net	28.3	19.7	20.3
Income before income taxes	828.4	882.1	881.2
Income taxes	(262.2)	(363.9)	(290.6)
Income from continuing operations, net of tax	566.2	518.2	590.6
Gain from discontinued operations, net of tax	31.9	—	—
Net income before allocation to noncontrolling interests	598.1	518.2	590.6
Less noncontrolling interests	(1.6)	(1.5)	(0.8)
Net income attributable to Safeway Inc.	\$ 596.5	\$ 516.7	\$ 589.8
Basic earnings per share:			
Continuing operations	\$ 2.28	\$ 1.49	\$ 1.56
Discontinued operations	\$ 0.13	\$ —	\$ —
Total	\$ 2.41	\$ 1.49	\$ 1.56
Diluted earnings per share:			
Continuing operations	\$ 2.27	\$ 1.49	\$ 1.55
Discontinued operations	\$ 0.13	\$ —	\$ —
Total	\$ 2.40	\$ 1.49	\$ 1.55
Weighted average shares outstanding – basic	245.6	343.4	378.3
Weighted average shares outstanding – diluted	245.9	343.8	379.6

See accompanying notes to consolidated financial statements.

SAFEWAY INC. AND SUBSIDIARIES
Consolidated Statements of Comprehensive Income
(In millions)

	52 Weeks 2012	52 Weeks 2011	52 Weeks 2010
Net income before allocation to noncontrolling interests	\$ 598.1	\$ 518.2	\$ 590.6
Other comprehensive (loss) income:			
Translation adjustments, net of tax	(3.1)	8.8	90.6
Pension and post-retirement benefits adjustment to funded status, net of tax	(79.7)	(210.3)	(38.9)
Recognition of pension and post-retirement benefits actuarial loss, net of tax	69.5	51.0	49.1
Other, net of tax	1.0	1.0	1.0
Total other comprehensive (loss) income	(12.3)	(149.5)	101.8
Comprehensive income including noncontrolling interests	585.8	368.7	692.4
Comprehensive income attributable to noncontrolling interests	(1.6)	(1.5)	(0.8)
Comprehensive income attributable to Safeway Inc.	\$ 584.2	\$ 367.2	\$ 691.6

See accompanying notes to consolidated financial statements.

SAFEWAY INC. AND SUBSIDIARIES
Consolidated Balance Sheets
(In millions, except per-share amounts)

	Year-end 2012	Year-end 2011
Assets		
Current assets:		
Cash and equivalents	\$ 352.2	\$ 729.4
Receivables	909.0	652.1
Merchandise inventories, net of LIFO reserve of \$70.5 and \$70.1	2,562.0	2,469.6
Prepaid expenses and other current assets	344.7	335.7
Total current assets	4,167.9	4,186.8
Property:		
Land	1,881.4	1,775.5
Buildings	6,812.6	6,527.2
Leasehold improvements	3,485.5	3,664.1
Fixtures and equipment	7,958.5	7,819.7
Property under capital leases	612.1	591.4
	20,750.1	20,377.9
Less accumulated depreciation and amortization	(11,525.5)	(10,740.3)
Total property, net	9,224.6	9,637.6
Goodwill	471.5	469.8
Investment in unconsolidated affiliate	191.7	196.8
Other assets	601.3	582.6
Total assets	\$ 14,657.0	\$ 15,073.6

SAFEWAY INC. AND SUBSIDIARIES
Consolidated Balance Sheets
(In millions, except per-share amounts)

	Year-end 2012	Year-end 2011
Liabilities and Stockholders' Equity		
Current liabilities:		
Current maturities of notes and debentures	\$ 294.0	\$ 811.3
Current obligations under capital leases	36.2	29.2
Accounts payable	3,125.0	2,917.0
Accrued salaries and wages	460.9	500.9
Deferred income taxes	45.7	77.8
Other accrued liabilities	643.8	675.9
Total current liabilities	4,605.6	5,012.1
Long-term debt:		
Notes and debentures	4,831.9	4,165.0
Obligations under capital leases	411.6	404.7
Total long-term debt	5,243.5	4,569.7
Deferred income taxes	178.5	141.9
Pension and post-retirement benefit obligations	914.5	904.5
Accrued claims and other liabilities	781.5	730.1
Total liabilities	11,723.6	11,358.3
Commitments and contingencies		
Stockholders' equity:		
Common stock: par value \$0.01 per share; 1,500 shares authorized; 605.3 and 604.5 shares issued	6.1	6.0
Additional paid-in capital	4,505.6	4,463.9
Treasury stock at cost: 365.8 and 307.9 shares	(9,119.8)	(7,874.4)
Accumulated other comprehensive loss	(73.8)	(61.5)
Retained earnings	7,609.8	7,175.3
Total Safeway Inc. equity	2,927.9	3,709.3
Noncontrolling interest	5.5	6.0
Total equity	2,933.4	3,715.3
Total liabilities and stockholders' equity	\$ 14,657.0	\$ 15,073.6

See accompanying notes to consolidated financial statements.

SAFEWAY INC. AND SUBSIDIARIES
Consolidated Statements of Cash Flows
(In millions)

	52 Weeks 2012	52 Weeks 2011	52 Weeks 2010
Operating Activities:			
Net income before allocation to noncontrolling interest	\$ 598.1	\$ 518.2	\$ 590.6
Gain from discontinued operations, net of tax	(31.9)	—	—
Income from continuing operations	566.2	518.2	590.6
Reconciliation to net cash flow from operating activities:			
Depreciation expense	1,134.3	1,148.8	1,162.4
Property impairment charges	46.5	44.7	71.7
Share-based employee compensation	55.1	50.0	55.5
LIFO expense (income)	0.7	35.1	(28.0)
Equity in earnings of unconsolidated affiliate	(17.5)	(13.0)	(15.3)
Net pension and post-retirement benefits expense	150.8	114.3	125.2
Contributions to pension and post-retirement benefit plans	(159.5)	(176.2)	(17.7)
Gain on property dispositions and lease exit costs, net	(79.1)	(65.6)	(27.5)
Increase in accrued claims and other liabilities	44.8	23.2	36.2
Deferred income taxes	(36.0)	(63.7)	(31.3)
Other	13.0	23.5	(3.4)
Changes in working capital items:			
Receivables	(5.6)	(2.1)	14.6
Inventories at FIFO cost	(84.7)	95.0	(64.4)
Prepaid expenses and other current assets	(27.5)	(13.1)	(15.3)
Income taxes	(82.7)	91.4	(3.7)
Payables and accruals	24.5	(80.5)	7.0
Payables related to third-party gift cards, net of receivables	26.4	293.6	(6.9)
Net cash flow from operating activities	1,569.7	2,023.6	1,849.7
Investing Activities:			
Cash paid for property additions	(927.6)	(1,094.7)	(837.5)
Proceeds from sale of property	300.8	188.0	84.5
Net cash proceeds from discontinued operations	107.0	—	—
Investments and business acquisitions	—	(35.9)	—
Other	(52.2)	(71.9)	(45.8)
Net cash used by investing activities	(572.0)	(1,014.5)	(798.8)

SAFEWAY INC. AND SUBSIDIARIES
Consolidated Statements of Cash Flows
(In millions)

	52 Weeks 2012	52 Weeks 2011	52 Weeks 2010
Financing Activities:			
Additions to (payments on) short-term borrowings, net	1.2	(0.8)	0.2
Additions to long-term borrowings	3,623.4	3,697.5	1,627.4
Payments on long-term borrowings	(3,551.6)	(3,087.6)	(1,712.4)
Purchase of treasury stock	(1,274.5)	(1,554.0)	(621.1)
Dividends paid	(163.9)	(188.0)	(168.1)
Net proceeds from exercise of stock options	3.8	73.4	117.1
Excess tax benefit from share-based employee compensation	1.3	1.8	1.6
Other	(13.5)	(19.6)	(12.8)
Net cash flow used by financing activities	(1,373.8)	(1,077.3)	(768.1)
Effect of changes in exchange rates on cash	(1.1)	18.8	24.5
(Decrease) increase in cash and equivalents	(377.2)	(49.4)	307.3
Cash and Equivalents:			
Beginning of year	729.4	778.8	471.5
End of year	\$ 352.2	\$ 729.4	\$ 778.8
Other Cash Information:			
Cash payments during the year for:			
Interest	\$ 322.3	\$ 302.6	\$ 315.7
Income taxes, net of refunds	380.9	336.2	325.6
Non-cash Investing and Financing Activities:			
Capital lease obligations entered into	\$ 48.1	\$ 1.1	\$ 0.1
Purchases of property, plant and equipment included in accounts payable	107.8	198.8	130.1
Notes received in the sale of real estate	—	97.3	16.4
Mortgage notes assumed in property additions	42.9	3.7	1.9

See accompanying notes to consolidated financial statements.

SAFEWAY INC. AND SUBSIDIARIES
Consolidated Statements of Stockholders' Equity
(In millions, except per-share amounts)

	52 Weeks 2012	52 Weeks 2011	52 Weeks 2010
Common Stock:			
Balance, beginning of year	\$ 6.0	\$ 6.0	\$ 5.9
Options exercised	0.1	—	0.1
Balance, end of year	6.1	6.0	6.0
Additional Paid-In Capital:			
Balance, beginning of year	4,463.9	4,363.1	4,212.4
Share-based employee compensation	55.1	50.0	55.5
Options exercised/cancelled, net	(11.9)	53.7	105.8
Other	(1.5)	(2.9)	(10.6)
Balance, end of year	4,505.6	4,463.9	4,363.1
Treasury Stock:			
Balance, beginning of year	(7,874.4)	(6,283.8)	(5,661.8)
Purchase of treasury stock	(1,240.3)	(1,588.2)	(621.1)
Other	(5.1)	(2.4)	(0.9)
Balance, end of year	(9,119.8)	(7,874.4)	(6,283.8)
Retained Earnings:			
Balance, beginning of year ⁽¹⁾	7,175.3	6,846.2	6,403.7
Prior period adjustment (Note A)			26.2
Balance, beginning of year, as corrected			6,429.9
Net income attributable to Safeway Inc.	596.5	516.7	589.8
Cash dividends declared (\$0.67, \$0.555 and \$0.46 per share)	(162.0)	(187.6)	(173.5)
Balance, end of year	7,609.8	7,175.3	6,846.2
Accumulated Other Comprehensive (Loss) Income:			
Balance, beginning of year	(61.5)	88.0	(13.8)
Translation adjustments (net of tax of \$ —, \$ — and \$3.0)	(3.1)	8.8	90.6
Pension and post-retirement benefits adjustment to funded status (net of tax of \$45.5, \$113.3 and \$17.5)	(79.7)	(210.3)	(38.9)
Recognition of pension and post-retirement benefits actuarial loss (net of tax of \$40.5, \$31.0 and \$29.2)	69.5	51.0	49.1
Other (net of tax of \$0.5, \$0.1 and \$0.3)	1.0	1.0	1.0
Balance, end of year	(73.8)	(61.5)	88.0
Noncontrolling Interests:			
Balance, beginning of year	6.0	4.4	—
Adoption of accounting guidance on noncontrolling interests, net of tax	—	—	2.8
Net earnings attributable to noncontrolling interests, net of tax	1.6	1.5	0.8
Other	(2.1)	0.1	0.8
Balance, end of year	5.5	6.0	4.4
Total Equity	\$ 2,933.4	\$ 3,715.3	\$ 5,023.9

SAFEWAY INC. AND SUBSIDIARIES
Consolidated Statements of Stockholders' Equity
(In millions)

	52 Weeks 2012	52 Weeks 2011	52 Weeks 2010
	Number of Shares Issued		
Common Stock:			
Balance, beginning of year	604.5	599.8	592.6
Options exercised	0.1	3.2	6.1
Restricted stock grants	0.7	1.5	1.1
Balance, end of year	605.3	604.5	599.8
	Number of Shares		
Treasury Stock:			
Balance, beginning of year	(307.9)	(231.8)	(204.3)
Purchase of treasury stock	(57.6)	(76.1)	(27.4)
Other	(0.3)	—	(0.1)
Balance, end of year	(365.8)	(307.9)	(231.8)

⁽¹⁾ 2011 and 2010 have been corrected for the prior period adjustment discussed in Note A under the caption "Corrections to Previously Reported Financial Statements."

See accompanying notes to consolidated financial statements.